

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zev Carter	Team: Squad #03	CCRB Case #: 201810267	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/30/2018 9:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/14/2021	Precinct: 07		
Date/Time CV Reported Mon, 12/10/2018 11:00 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 12/10/2018 11:00 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Monica Gorman	24099	963053	PSA 4
2. POM Matthew Ferguson	07017	956642	PSA 4
3. POM Ivan Vale	21916	960043	PSA 4
4. SGT Ricardo Montilla	5419	947270	PSA 4

Officer(s)	Allegation	Investigator Recommendation
A . SGT Ricardo Montilla	Abuse: Sergeant Ricardo Montilla threatened to damage § 87(2)(b)'s property.	A . Unsubstantiated
B . SGT Ricardo Montilla	Abuse: Sergeant Ricardo Montilla entered § 87(2)(b) in Manhattan.	B . Unsubstantiated
C . POM Matthew Ferguson	Abuse: Police Officer Matthew Ferguson entered § 87(2)(b) in Manhattan.	C . Unsubstantiated
D . POF Monica Gorman	Abuse: Police Officer Monica Gorman entered § 87(2)(b) in Manhattan.	D . Unsubstantiated
E . SGT Ricardo Montilla	Abuse: Sergeant Ricardo Montilla searched § 87(2)(b) in Manhattan.	E . Unsubstantiated
F . POM Matthew Ferguson	Abuse: Police Officer Matthew Ferguson searched § 87(2)(b) in Manhattan.	F . Unsubstantiated
G . POF Monica Gorman	Abuse: Police Officer Monica Gorman searched § 87(2)(b) in Manhattan.	G . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On December 10, 2018, § 87(2)(b) filed this complaint with the CCRB as a walk-in.

On November 30, 2018, at approximately 9:30 p.m., § 87(2)(b) was home alone inside of her apartment in § 87(2)(b) in Manhattan when Sergeant Ricardo Montilla, Police Officer Matthew Ferguson, Police Officer Monica Gorman, and Police Officer Ivan Vale (along with other officers from PSA 4) arrived at her door. Sgt. Montilla threatened to knock § 87(2)(b) door down if she did not allow him to enter the apartment (**Allegation A: Abuse of Authority, unsubstantiated**). Sgt. Montilla, PO Ferguson, and PO Gorman entered § 87(2)(b) Jackson's apartment (**Allegations B, C, and D: Abuse of Authority, unsubstantiated**). Sgt. Montilla, PO Ferguson, and PO Gorman searched § 87(2)(b) apartment (**Allegation E, F, and G: Abuse of Authority, unsubstantiated**). § 87(4-b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

This case contains body-worn camera footage from PO Ferguson, PO Gorman, PO Vale, and Sgt. Montilla (**01, 02, 03, 04 Board Review**) and from security cameras mounted on the interior and exterior of the NYCHA Vladeck Houses (**11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Ricardo Montilla threatened to damage § 87(2)(b)'s property.

Allegation (B) Abuse of Authority: Sergeant Ricardo Montilla entered § 87(2)(b) in Manhattan.

Allegation (C) Abuse of Authority: Police Officer Matthew Ferguson entered § 87(2)(b) in Manhattan.

Allegation (D) Abuse of Authority: Police Officer Monica Gorman entered § 87(2)(b) in Manhattan.

Allegation (E) Abuse of Authority: Sergeant Ricardo Montilla searched § 87(2)(b) in Manhattan.

Allegation (F) Abuse of Authority: Police Officer Matthew Ferguson searched § 87(2)(b) in Manhattan.

Allegation (G) Abuse of Authority: Police Officer Monica Gorman searched § 87(2)(b) in Manhattan.

It is undisputed that at a certain point during the incident, § 87(2)(b) allowed officers to enter and search her apartment. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) stated that on November 30, 2018, at approximately 9:00 p.m., she was inside of her apartment in NYCHA's Vladeck Houses ironing curtains and preparing Christmas decorations (**05 Board Review**). § 87(2)(b) heard a knock at her door. The volume of the knocking increased to the point that § 87(2)(b) thought that somebody was kicking her door. § 87(2)(b) asked, "Who

is it?” through her door in English. Officers on the other side of the door identified themselves. § 87(2)(b) looked through her peephole and saw the officers. A male officer with a beard (identified via the investigation as Sgt. Montilla) told § 87(2)(b) that he needed to speak to her, and that she needed to open the door. § 87(2)(b) opened the door with the chain still fastened to the door frame. Sgt. Montilla grabbed the door and pushed on it with his left shoulder. He told § 87(2)(b) that she needed to take the chain off of her door or else he would break it.

§ 87(2)(b) stated that officers told her that they were looking for her son, who had an afro, and had entered her apartment five minutes earlier. The officers did not mention the name of the person whom they were looking for. § 87(2)(b)'s son has his own family, and has not lived with her for a long time. § 87(2)(b) told Sgt. Montilla to show her the piece of paper that would authorize the officers to enter. The officers told § 87(2)(b) that she was supposed to allow them to enter her apartment. Sgt. Montilla told her that if she did not open the door, the officers would break the chain and knock the door down. The officers were speaking Spanish, but § 87(2)(b) stated that she understood what they were saying.

§ 87(2)(b) stated that at this point, a female Hispanic officer with straight black hair (identified via the investigation as PO Gorman) asked § 87(2)(b) if she spoke Spanish, and § 87(2)(b) said that she did. PO Gorman spoke to § 87(2)(b) in Spanish and told her that it was “better” if she opened the door because she had to be sure that the person the officers were looking for was not inside of her apartment.

§ 87(2)(b) stated that she allowed Sgt. Montilla into her apartment. Sgt. Montilla looked through every room in § 87(2)(b)'s apartment, going to the living room, dining room, bedroom, bathroom, and kitchen. Sgt. Montilla was the only officer who entered her apartment, and he was inside for two to three minutes. Sgt. Montilla found nobody inside of the apartment, and left.

Sgt. Montilla stated that at the time of the incident, he was doing administrative work inside of the PSA 4 stationhouse (**06 Board Review**). He received a radio run about a robbery that had occurred in one of the Vladeck Houses. When he received the radio run, he accessed closed-circuit cameras installed in the Vladeck Houses from the PSA 4 stationhouse. Rewinding the footage recorded by the cameras and communicating with PO Vale and PO Gorman, who had already arrived on scene, Sgt. Montilla saw two men who matched the description of the perpetrators of the robbery. The men were running into one of the buildings in the Vladeck Houses. One of the men was heavysset and dark-skinned, and the other was light-skinned with long hair and glasses.

PO Ferguson stated that he was also inside of the PSA 4 stationhouse when he received a radio run concerning a 911 call about a robbery (**07 Board Review**). Sgt. Montilla told PO Ferguson that the perpetrator of the robbery was a light-skinned Hispanic male, and said that the two of them were going to go to the location of the robbery to canvass.

PO Gorman stated that at the time of the incident, she received a radio run about a male who had been assaulted at the Vladeck Houses (**08 Board Review**). When she arrived at the lobby of one of the Vladeck Houses, she was met by a man who said that he was walking down the stairs in the building when, near the third-floor staircase, he was punched and his phone was stolen. PO

Gorman also spoke with the victim's girlfriend. She told PO Gorman that one of the perpetrators lived in § 87(2)(b)

PO Vale stated that upon arrival at § 87(2)(b) he and other officers met with the victim of an assault who was sitting inside of the building (09 Board Review). The victim had sustained injuries to his head. PO Gorman and the anti-crime Sergeant on duty interviewed the man and learned that he had also been the victim of a robbery. To PO Vale's recollection, the victim gave no information about the people who had assaulted him. PO Vale and other officers who were present moved on to conduct an interior search of § 87(2)(b) for any signs of an assault. The investigation led the officers to the § 87(2)(b) floor of the building. A splatter of blood could be seen on the hallway floor and staircase between the § 87(2)(b) floor. Officers knocked on tenants' doors to ask whether they had seen or heard anything related to the assault. Nothing other than the blood splatter led officers to knock on doors on the § 87(2)(b) floor.

PO Ferguson, PO Gorman, and Sgt. Montilla each stated that they began to knock on doors in the building to see if anybody had any information about people fitting the general descriptions of the perpetrators of the assault and robbery.

Sgt. Montilla stated that after seeing who he thought were the perpetrators on scene, he instructed officers on scene to conduct vertical patrols in the building, and went to § 87(2)(b). He learned from officers on scene that the perpetrators of the robbery were known by the robbery victim's girlfriend. Sgt. Montilla believed that the victim's girlfriend said that the perpetrators of the robbery lived on the § 87(2)(b) floor of the building.

Sgt. Montilla stated that he knocked on the door next door to § 87(2)(b)'s apartment and spoke to the resident. Sgt. Montilla relayed the description of the perpetrators to the neighbor. In response, the neighbor said that she did not know who they were, but motioned with her head to § 87(2)(b)'s apartment. Sgt. Montilla moved to § 87(2)(b)'s apartment door and knocked on it with his hand. He did not recall having any conversation with § 87(2)(b) while her door was closed. § 87(2)(b) opened the door and spoke to Sgt. Montilla in Spanish. Sgt. Montilla asked § 87(2)(b) if she had information about the robbery, and asked if he knew what had occurred in the building. § 87(2)(b) told him that nobody else was inside of the apartment. Sgt. Montilla asked whether § 87(2)(b) had any children, and she said that she had a son. Sgt. Montilla asked § 87(2)(b) whether her son had visited that day, and § 87(2)(b) said that he had not.

Through § 87(2)(b)'s open door, Sgt. Montilla stated that he saw a picture frame that held what appeared to be a high school portrait. The subject of the portrait looked like one of the perpetrators who Sgt. Montilla was looking for. Sgt. Montilla asked whether the photograph was of her son. § 87(2)(b) said that it was. Again, Sgt. Montilla explained to § 87(2)(b) about the robbery and told her that he just wanted to get her son's side of the story. § 87(2)(b) told Sgt. Montilla that her son was not present, and she told him that he could check for himself. Sgt. Montilla said, "Are you alright with that?" § 87(2)(b) said, "Yes. Come in so you can check." PO Gorman, who speaks Spanish, stood next to Sgt. Montilla and spoke to § 87(2)(b). Sgt. Montilla could not recall what PO Gorman told § 87(2)(b).

PO Gorman stated that after an officer knocked on § 87(2)(b)'s door with their hand, § 87(2)(b) came to her door immediately without saying anything through the closed door. PO Gorman gave a similar account of the conversation that occurred between § 87(2)(b) and Sgt. Montilla. In Spanish, PO Gorman asked § 87(2)(b) what her son's name was, and § 87(2)(b) provided her son's name. She told the officers that her son was not home. An officer then asked § 87(2)(b) if officers could enter her apartment, just to be certain. § 87(2)(b) allowed the officers to enter.

Sgt. Montilla and PO Gorman both denied that § 87(2)(b) denied the officers access to her apartment.

PO Vale could not remember the contents of the conversation between § 87(2)(b) and the officers on scene.

PO Ferguson could not attest to the contents of the conversation that Sgt. Montilla and PO Gorman had with § 87(2)(b) because he does not speak Spanish.

Sgt. Montilla, PO Ferguson, and PO Gorman each stated that they entered the apartment, determined that nobody else was inside, then left. PO Ferguson stated that he walked into § 87(2)(b)'s foyer and living room, and then left the apartment. PO Gorman stated that she did not enter any rooms after walking into the apartment.

Sgt. Montilla's body-worn camera footage shows that he entered the apartment, leaned into § 87(2)(b)'s bathroom and bedroom, then walked into § 87(2)(b)'s living room before turning around and walking out. He spent 20 seconds inside of the apartment.

PO Ferguson and PO Gorman's body-worn camera footage show that Sgt. Montilla was speaking to § 87(2)(b) for at least 30 seconds before the officers entered the apartment. However, none of the audio of this conversation was recorded because Sgt. Montilla, PO Ferguson, PO Gorman, and PO Vale only intentionally triggered their body-worn cameras to record both sound and audio just before entering the apartment. PO Vale's body-worn camera footage shows that he stood directly behind another officer and did not enter § 87(2)(b)'s apartment, but only began recording the incident after other officers entered the apartment.

§ 87(2)(b) was contacted after Sgt. Montilla's interview (**25 Board Review**). She stated that she allowed the officers into her apartment because she was afraid – the officers had guns, and they told her that they would tear the door down if she did not let them in. When asked whether she felt comfortable allowing the officers enter her apartment, she stated that she felt “more secure” with PO Gorman's presence, because she did not think that one woman would want to hurt another. § 87(2)(b) stated that she has no photographs of her son in the entryway to her apartment. When asked about the arrangement of the apartments on her floor, she stated that the number of the apartment across from hers is § 87(2)(b). The apartment number to the right of § 87(2)(b)'s apartment is § 87(2)(b).

A Lexis public records search for the residents of apartment § 87(2)(b) yielded results for an individual by the name of § 87(2)(b). None of the phone numbers listed on the public records search for the

apartment were functional. A letter to § 87(2)(b) sent on February 28, 2019 was returned to the CCRB with “no such person” written on the envelope.

The undersigned investigator spoke to § 87(2)(b) the resident of § 87(2)(b) (26 Board Review). § 87(2)(b) stated that she did not speak police officers on the date of the incident, but that her father did, and told them that he had not seen anything out of the ordinary. Her father would not speak to the investigator. § 87(2)(b) would not provide any additional information about the other apartments on her floor.

NYCHA surveillance footage from cameras pointed at the courtyard between § 87(2)(b) show that at 8:11 p.m. (0:00 in the subclip), two civilians – one tall, skinny male with glasses and long dark hair in black clothing (C1) and one shorter, heavysset male with short hair and a beanie (C2) – entered § 87(2)(b) (23 Board Review). At 8:26 p.m. (26:15), C2 exits § 87(2)(b) in a new change of clothes and walks across the courtyard to enter § 87(2)(b). C1 does the same one minute later. C1 walks from § 87(2)(b) to § 87(2)(b) again at 8:28 p.m. (28:25), and then from § 87(2)(b) to § 87(2)(b) at 8:29 p.m. (29:50). At 8:31 p.m. (31:10), C1 exits § 87(2)(b) and walks through the courtyard away from the building. He returns at 8:36 p.m. (36:15) and enters § 87(2)(b) 45 seconds later, he walks across the courtyard from § 87(2)(b) to § 87(2)(b).

The event information created for this incident shows that the following information, paraphrased, was reported to the police: A female caller stated at 8:47 p.m. that ten minutes earlier, her husband was “jumped” by two perpetrators. One was a Hispanic male in his late 20s with curly hair and glasses. Another was a heavysset Hispanic male. Both men ran into their home in § 87(2)(b) (24 Board Review)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegations A, B, C, D, E, F, and G be **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Sgt. Montilla has been a member of service for 10 years and has been a subject in nine cases and 32 allegations, none of which were substantiated. § 87(2)(g)
- PO Ferguson has been a member of service for four years and has been a subject in seven cases and 16 allegations, none of which were substantiated. § 87(2)(g)
- PO Gorman has been a member of service for two years and this is the first complaint to which she has been a subject.
- PO Vale has been a member of service for three years and this is the first complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) chose not to mediate this complaint.
- As of February 26, 2018, § 87(2)(b) had not filed a notice of claim regarding this incident (**27 Board Review**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date